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March 30, 2020

NSA FOIA/PA Appeal Authority
National Security Agency
9800 Savage Road STE 6932
Fort George G. Meade, MD 20755-6932

RE: Appeal on PA Case 108494A

Dear Sir or Madam:

Please accept this letter of appeal against the Agency's partial denial and failure to produce records in the above-identified case. Reference is made to the March 2, 2020 Agency response. Each basis is detailed below demonstrating why partial denial or failure to produce records was unwarranted.

Deletion at document A6692561 — “confidential source” and “C&R” — is unwarranted

Agency cites 5 U.S.C. 552a(k)(5) and 5 U.S.C 552(b)(7)(D) and justifies deleting specific information because “it would identify a source of investigatory material.” This justification is not acceptable where the underlying law limits this “**only to the extent** that the disclosure of such material would reveal the identity of a source” and only when it “**could reasonably be expected** to disclose the identity of a confidential source” [emphasis added].

The deleted information are clearly material items, since they are included on the “facts summary,” under the final “C&R” section, and are subsequently referenced in a panel decision which directly resulted in an adverse employment action. It is surely reasonable to expect that the Agency has corroborated the facts in question to a second source. Even if the Agency had not in fact done so, this is the reasonable expectation. Therefore, producing the information does not actually, or reasonably, disclose the identity of the source, which is written as “confidential source.”

Alternatively. There is no possible English sentence where each and every word inside, individually, could betray a confidential source. And therefore, at a minimum, *some* part of these sentences was deleted unnecessarily and the partial denial was unwarranted.

Withholding of records — at least SF 86 and SSBI — is unwarranted

The Agency response cites only (k)(6) and (b)(7)(E) for “withholding” records in their entirety and provides the justification that if released, they “would reveal law enforcement techniques or procedures.”

There are additional records which the Agency shall have access to (e.g. as required under 5 U.S.C. 552(e)(2)) which are responsive to the original request. Two specific examples are:

- 1) The original and completed applicant Standard Form 86 Questionnaire
- 2) The SSBI report

It cannot be argued that producing the original and completed Standard Form 86 Questionnaire would “reveal law enforcements techniques.” Meriam Webster dictionary provides the plain meaning of “reveal” in this usage as “to make (something secret or hidden) publicly or generally known”. And this form is not “secret or hidden” because it is published on the U.S. Office of Personnel Management website. Furthermore, the form was filled out by the same person, me, that is requesting the form.

The “SSBI” report, dated Marth 21, 2005 is identified on Facts Summary (document A6692561). The Agency demonstrates that information from this report does not “reveal law enforcements techniques” because they are included on the Facts Summary. And so therefore producing the same information on the source document, the SSBI report, would also not “reveal law enforcements techniques.” This demonstrates that withholding the SSBI report in its entirety was unwarranted.

Therefore, the withholding of the two identified documents above, and possibly other responsive documents, was unwarranted.

Deletion / excision of examination questions — while published on SF 86 — is unwarranted

The Agency response includes two Report of Polygraph Examination documents (identifiers A6692567 and A6692573). All polygraph questions are deleted and/or excised with citation to (b)(2), (b)(3)-P.L. 86-36, (b)(7)(E) and/or (k)(6) and the Agency justification that these omissions are limited to information that would “compromise the objective or fairness of the testing or examination process,” “involve ‘personnel rules and practices,’” or “reveal law enforcement techniques or procedures.”

Agency justification is overly broad where the cited law provides only more precise and limited exemptions. Merely “involving” personnel rules and practices is overly broad where 5 U.S.C. 552(b)(2) applies only to matters that are “related **solely** to the internal personnel rules and practices of an agency” [emphasis added]. Next it will be shown that this and the remaining Agency justifications (“reveal” techniques or procedures, and “compromise” testing process) are all not applicable.

As established above, U.S. Office of Personnel Management Standard Form 86, Questionnaire for National Security Positions, is a public document. And the context of this document is identified in-text as “background investigations for national security positions.” And the two Report of Polygraph Examination documents are clearly also in the context of a background investigation for a national security position. The deleted/excised questions in the polygraph report are the same questions in the SF 86. (For example, see SF-86 question 29.1). Thus, it cannot be argued that producing this information would “reveal” techniques or procedures or

“compromise” testing process. And further, this is not “solely” an internal rule or practice because it is the test report for a subject which was used to support an employment action.

Therefore, the deletion / excision of questions on the polygraph examination reports was unwarranted.

A personal note

This polygraph examination and SSBI had a big effect on my life — it ended my DoD career, changed my course of study. Now I speak Mandarin, do business around the world, and travel without restriction. But I still work on cybersecurity.

This FOIA / PA request is important to me.

Now I’ll tell you one thing I did lie about. It’s the question “we’re you born on mm/dd/yyyy?” I answered “yes.” The true answer is “I don’t remember.” Nobody remembers their own birth. Most of my time in that room (both examinations) I was wondering how Fort Meade must be full of people that also lied on this same question, or maybe they just weren’t engineers.

Older and wiser, I now know that polygraphs aren’t scientific, and don’t invent petty crimes to appease an examiner.

Thank you for your consideration of this appeal.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "William Entriken", written in a cursive style.

William Entriken